[Public Land Order 1280]

[48961]

UTAH

REVOKING EXECUTIVE ORDER NO. 1673 OF DECEMBER 31, 1912, AND THE DEPARTMENTAL ORDER OF JANUARY 9, 1907, WHICH RESERVED PUBLIC LANDS FOR USE OF THE FOREST SERVICE AS ADMINISTRATIVE SITES

By virtue of the authority vested in the President by the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The orders described below, withdrawing public lands in Utah for use of the Forest Service, Department of Agriculture as administrative sites, are hereby revoked:

(a) Executive Order No. 1673 of December 31, 1912, reserving the following-described lands as the Comanche Administrative Site:

SALT LAKE MERIDIAN

T. 38 S., R. 13 W.,
Sec. 21, SE¼NW¼.

The area described contains 40 acres.

(b) The Departmental order of January 9, 1907, reserving the following-described lands as the Jubilee Ranger Station:

SALT LAKE MERIDIAN

T. 32 S., R. 2 E.,
Sec. 24, S½NE¼.

The area described contains 85.5 acres.

2. The land in T. 32 S., R. 2 E., is part of the Dixie National Forest. Subject to any valid existing rights and the requirements of applicable law, these lands are hereby opened to such applications, selections, and locations as are permitted on national forest lands, effective at 10:00 a. m. on May 8, 1956.

3. The land in T. 38 S., R. 13 W., is located in Washington County, Utah, about one-half mile west of New Harmony. The topography is rolling to broken rocky alluvial fan and the soil is of a rocky, sandy clay loam type. The land is within Utah Grazing District No. 4. North Ash Creek crosses the tract making water available for livestock.

4. No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

5. Subject to any valid existing rights and the requirements of applicable law, the restored lands are hereby open to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on May 8, 1956, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on August 7, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on August 7, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on August 7, 1956.

Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the land shall be addressed to the Manager, Land Office, Bureau of Land Management, Salt Lake City, Utah.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

APRIL 2, 1956.

[F. R. Doc. 56-2569; Filed, Apr. 5, 1956; 8:48 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 52]

SUBPART—UNITED STATES STANDARDS FOR GRADES OF CANNED ASPARAGUS [1]

NOTICE OF PROPOSED RULE MAKING

Notice has heretofore been given (20 F. R. 651; 21 F. R. 643) that consideration is being given to the revision of United States Standards for Grades of Canned Asparagus, pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087, as amended, et seq.; 7 U. S. C. 1621 et seq.). Interested persons were allowed a period of 30 days in which to submit written data, views, or arguments for consideration in connection with the proposed standards, which period expired on February 29, 1956. In view of further important changes in the previously proposed revision, interested persons are given the opportunity to submit data, views, and arguments with respect to the following revised proposal.

All persons who desire to submit written data, views, or arguments for consideration in connection with the following proposed standards should file the same with the Chief, Processed Products Standardization and Inspection Branch, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, South Building, Washington 25, D. C., not later than December 31, 1956.

The proposed revision is as follows:

PRODUCT DESCRIPTION, STYLES, GRADES, AND TYPES

Sec.
52.2541 Identity.
52.2542 Styles of canned asparagus.
52.2543 Grades of canned asparagus.
52.2544 Types of canned asparagus.

FILL OF CONTAINER AND DRAINED WEIGHTS

52.2545 Recommended fill of container.
52.2546 Recommended minimum drained weight.
52.2547 Compliance with recommended minimum drained weights.

SIZE (DIAMETER) OF SPEARS, TIPS, AND POINTS

52.2548 Size (diameter) of spears, tips, and points in canned asparagus.
52.2549 Compliance with single size recommendations.

FACTORS OF QUALITY

52.2550 Ascertaining the grade.

[1] Compliance with the provisions of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.